

25STCV31576 25STCV31576

County: los-angeles

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Case Number: 25STCV31576 Hearing Date: August 24, 2026 Dept: 516

Judge James I. Montgomery

Department 516

Hearing Date: August 24, 2026

Case Name: Mendoza v. American Honda

Motor Co., Inc.

Case

No.: 25STCV31576

Matter: Other Relief from Waiver of Objections to

Plaintiff's Written Discovery Due to Inadvertent Mistake and Excusable Neglect

Moving

Party: Defendant American

Honda Motor Co., Inc.

Responding Party: Plaintiff Diego Ivan Garcia Mendoza

Matter: Motion to Compel Defendant American Honda Motor Co.,

Inc. to Respond to Form and Special Interrogatories, and Requests for

Production of Documents and Deem Requests for Admissions Admitted

Moving

Party: Plaintiff Diego Ivan

Garcia Mendoza

Responding

Party: Defendant American Honda
Motor Co., Inc.

Tentative Ruling: Defendant

American Honda Motor Co., Inc.'s motion for relief from waiver
of objections is granted.

Plaintiff

Diego Ivan Garcia Mendoza's motions to compel Defendant American
Honda Motor Co., Inc. to respond to Form and Special Interrogatories, and Requests for Production of Documents
and deem Requests for Admissions admitted are
rendered moot.

Plaintiff Diego

Ivan Garcia Mendoza ("Plaintiff") filed this action against Defendant American
Honda Motor Co., Inc. ("Defendant") and Does 1 through 10.

Defendant

moves for relief from waiver of objections based on untimely responses to
Plaintiff's Form and Special Interrogatories, Requests for Production of
Documents, and Requests for Admissions. Plaintiff opposes.

Plaintiff

moves to compel Defendant to serve Code-Complaint responses to propounded
discovery without objections. Defendant opposes.

Legal Standard

Code of

Civil Procedure section 2030.290, subdivision (a) provides that:

(a) The party to whom the

interrogatories are directed waives any right to exercise the option to produce
writings under Section 2030.230, as well as any objection to the
interrogatories, including one based on privilege or on the protection for work
product under Chapter 4 (commencing with Section 2018.010). The court, on
motion, may relieve that party from this waiver on its determination that both
of the following conditions are satisfied:

(1)

The party has subsequently served a response that is in substantial compliance with Sections 2030.210, 2030.220, 2030.230, and 2030.240.

(2)

The party's failure to serve a timely response was the result of mistake, inadvertence, or excusable neglect.

(Code Civ. Proc., § 2030.290, subd. (a).)

While Code

of Civil Procedure section 2031.300, subdivision (a) provides that:

(a) The party to whom the demand for inspection, copying, testing, or sampling is directed waives any objection to the demand, including one based on privilege or on the protection for work product under Chapter 4 (commencing with Section 2018.010). The court, on motion, may relieve that party from this waiver on its determination that both of the following conditions are satisfied:

(1)

The party has subsequently served a response that is in substantial compliance with Sections 2031.210, 2031.220, 2031.230, 2031.240, and 2031.280.

(2)

The party's failure to serve a timely response was the result of mistake, inadvertence, or excusable neglect.

(Code Civ. Proc., § 2031.300, subd. (a).)

Code

of Civil Procedure section 2033.280, subdivision (a) provides that:

(a) The party to whom the requests for admission are directed waives any objection to the requests, including one based on privilege or on the protection for work product under Chapter 4 (commencing with Section 2018.010). The court, on motion, may relieve that

party from this waiver on its determination that both of the following conditions are satisfied:

(1)

The party has subsequently served a response that is in substantial compliance with Sections 2033.210, 2033.220, and 2033.230.

(2)

The party's failure to serve a timely response was the result of mistake, inadvertence, or excusable neglect.

(Code Civ. Proc., § 2033.280, subd. (a).)

Analysis

A.

Motion for Relief from Waiver of Objections

Defendant

moves for relief from waiver of objections to Plaintiff's Form and Special Interrogatories, Requests for Production of Documents, and Requests for Admissions.

On February

13, 2026, Plaintiff propounded discovery on Defendant. (Michel Decl., ¶¶ 4, 6, 9.) Defendant's responses were due on March 18, 2025. (Id. at ¶ 9.) Plaintiff learned that it had outstanding discovery requests on May 28, 2026, when it was served with Plaintiff's motion to deem Requests for Admissions admitted. (Id. at ¶ 4.)

Defendant

declares that on June 10, 2026, it served verified Code-Complaint responses. (Michel Decl., ¶¶ 10.) The Court finds Defendant's motion persuasive. Defendant declares that the cause for the failure to serve timely responses was due to an inadvertent mistake on behalf of Defendant, misunderstanding Plaintiff's correspondence, and as a result did not calendar the date discovery was due. (Michel Decl., ¶¶ 7-8.) The Court does not need the extensive amount of evidence and detail to make this finding, nor does the Court have to weigh the credibility of Defendant's declaration.

Moreover, Defendant provided responses and, subsequently, the corresponding verifications, all within approximately three months of their original due dates. The responses and supplemental responses are verified and contain responses and objections. (Michel Decl., ¶ 10, Exs. C-F.) The responses do not need to be perfect; they just need to substantially comply with the code. (See Code Civ. Proc., §§ 2030.290, subd. (a), 2031.300, subd. (a), 2033.280, subd. (a); St. Mary v. Superior Ct. (2014) 223 Cal.App.4th 762, 780 (St. Mary) [belated responses to be viewed in their totality and not in a piecemeal fashion].) To the extent that Plaintiff contends the responses are insufficient and contain improper objections, Plaintiff's tool for addressing those issues is a motion to compel further. (St. Mary, supra, 223 Cal.App.4th at p. 781, fn. 21.)

The Court finds Defendant has satisfied the grounds for relief from waiver of their discovery objections to the underlying discovery requests.

Thus, the Court grants Defendant's motion for relief from waiver of objections to Plaintiff's Form and Special Interrogatories, Requests for Production of Documents, and Requests for Admissions.

B. Plaintiff's Motions to Compel and Deem
Requests for Admissions Admitted

Plaintiff's motions to compel Defendant to respond to propounded discovery and deem requests for admissions are rendered moot because Defendant has served responses.

Conclusion

Defendant American Honda Motor Co., Inc.'s motion for relief from waiver of objections

is granted.

Plaintiff

Diego Ivan Garcia Mendoza's motions to compel Defendant American Honda Motor Co., Inc. to respond to Form and Special Interrogatories, and Requests for Production of Documents and to deem Requests for Admissions admitted are rendered moot.